

Session 9: Divorce and Remarriage

Key Takeaways

- Jesus' teaching about marriage and divorce engages a debate, still raging in his 1st-century context, about the interpretation of the command in Deuteronomy 24:1.
- Jesus sides with the interpreters teaching that a man may not divorce his wife for just any reason he chooses. He calls out the harm that is done to women in this scenario by identifying them as the victims of adultery.
- Jesus' teaching on marriage and divorce provides wisdom for all but is limited in scope by the context of the debate he's addressing. In 1 Corinthians 7, Paul gives us some examples of how this wisdom can be applied in circumstances that don't fit the specifics of Jesus' teaching in Matthew 5.

Case Study 3: Divorce & Remarriage

³¹ It **has also been said**,

“Whoever **sends away his wife**,
he must give her a certificate of divorce.”

³² **And I say to you that**

everyone who **sends away his wife**,
—except on the ground of sexual immorality—
he makes her a **victim of adultery**,

and whoever marries a **sent-away-woman**
he **commits adultery**.

Matthew 5:31-32. Translation and Literary Design by Tim Mackie for BibleProject Classroom: The Messianic Torah (2024).

Jesus quotes others who themselves quote one short line from a paragraph in Deuteronomy 24:1-4, assuming a whole background of historical and cultural context. Importantly, Jesus is very succinct here, but Matthew has included another story where these same words are unpacked in more detail (Matt. 19:1-9), and here Jesus highlights the same issues at work in case studies 1 and 2.

Matthew 19:3–9 Instructor's Translation

³ Some Pharisees came to Jesus, testing him and asking,
“Is it lawful for a man to send his wife for any reason at all?”

⁴ And he answered and said,
“Haven’t you read that he who created them from the beginning
made them male and female,

⁵ and said,
‘For this reason a man shall leave his father and mother and be joined to his wife,
and the two shall become one flesh’?

⁶ So they are no longer two, but one flesh.
What therefore God has joined together, let no human separate.”

⁷ They said to him,
“Why then did Moses command to give her a certificate of divorce and send her away?”

⁸ He said to them,
“Because of **your hardness of heart** Moses permitted you to divorce your wives;
but from the beginning it has not been this way.

⁹ And I say to you,
whoever divorces his wife,
except for sexual immorality,
and marries another woman commits adultery.”

Jesus’ words on divorce and remarriage are a response to a very specific question, related to a very specific debate going on in the 1st century among Jewish rabbis. Scholars refer to this as the “any cause divorce” debate. This is a loaded set of texts, with loaded implications. To do it justice, we have to consider a number of factors.

Factor 1: Jesus Is Being Drawn Into a Contemporary Debate

In Matthew 19:3, Pharisees are “testing him,” meaning this is a leading question designed to trap Jesus into saying something that will discredit his public reputation. This makes it clear that it is a loaded question about a hot topic.

“Babylonian Talmud, Gittin 9:10

1. The House of Shammai says, “A man should divorce his wife only because he has found grounds for it in unchastity, since it is said, ‘Because he has found in her **indecentcy** in a thing’ (Deut. 24:1).”

2. And the House of Hillel says, “Even if she spoiled his dish, since it is said, ‘Because he has found in her indecentcy of a **thing**.’”

3. R. Aqiba says, “Even if he found someone else prettier than she, since it is said, ‘And it shall be if she find no favor in his eyes’ (Deut. 24:1).”

Neusner, Jacob (2011). [*The Babylonian Talmud: A Translation and Commentary*](#). Hendrickson Publishers. 404.

This debate was based on the wording of one of the two Torah commands regarding divorce in Deuteronomy 24:1.

Deuteronomy 24:1 LEB

If a man takes a woman and marries her,
and it comes about that she does not find favor in his eyes,
because he found in her some **nakedness of a matter**,
and he writes for her a scroll of cutting-off,
and he gives it into her hand,
and he sends her out from his house

“Nakedness of a matter” (Hebrew: עֲרוּת דָּבָר, *’ervat davar*) is a unique and ambiguous phrase that combines the words “nakedness” and “a thing.” Literally, “nakedness of a thing.”

The phrase is only used elsewhere in the Hebrew Bible in an adjacent chapter.

Deuteronomy 23:12-14 LEB

And there shall be for you a designated place outside the camp;
and you shall go there to relieve yourself,
and a digging tool shall be included in addition to your other utensils for yourself;
and then when you relieve yourself outside the camp you shall dig with it,
and then you shall turn, and you shall cover your excrement.
For Yahweh your God is walking about in the midst of your camp
to deliver you and to hand your enemies over to you before you,
and so let your camp be holy,
so that he shall not see in it any **nakedness of a matter**,
and he shall turn away from going with you.

Here the phrase “nakedness of a matter” refers to actual physical nakedness when one is exposed to poop.

The rabbis quoted above all come to different interpretations and different practical conclusions based on their understanding of this key phrase.

Notice that the Pharisees do not ask, e.g., “Are there legitimate grounds for divorce?” Rather, they word their question precisely to draw Jesus into this debate: Does he endorse the house of Shammai or the house of Hillel?

The implication here is that whatever Jesus’ response may be, it does not represent an exhaustive or complete treatment of this topic. Jesus does state his entire view on the matter, but only in addressing the specific debate at hand.

Factor 2: There Are Very Few Laws About Divorce in the Torah

There are only two texts in the Torah that explicitly treat the topic of divorce! In these texts, divorce could be initiated by a man or by a woman, for reasons of neglect, or “the nakedness of a thing.”

Exodus 21:10-11 Instructor's Translation

If [a man] takes to himself another wife, he may not reduce [his previous wife's] food, her clothing, or her rights to have sex. And if he will not do these three things for her, then she shall go out ...

Deuteronomy 24:1–4 Instructor's Translation

If a man takes a woman and marries her,
and it comes about that she does not find favor in his eyes,
because he found in her some nakedness of a matter,
and he writes for her a scroll of cutting-off,
and he gives it into her hand,
and he sends her out from his house,
and if she goes out from his house,
and goes and becomes the wife of another man,
and if the other husband hates her
and writes her a scroll of cutting-off,
and he gives it into her hand,
and sends her out from his house,
or if he dies,
then her first husband who divorced her,
he is not allowed to again take her to be his wife,
after she has been defiled,
because that is detestable before Yahweh,
and you are not to cause the land to sin,
the land which Yahweh your God is giving you as an inheritance.

Factor 3: In 1st Century Judaism, Only Men Could Initiate Divorce

Jewish sources from the 1st century indicate that women could not initiate divorce.

1st century Jewish historian Josephus:

“according to the Jewish laws; for with us it is lawful for a husband to do so; but a wife, if she departs from her husband, cannot of herself be married to another, unless her former husband put her away.”

Whiston, William (1980). [*The Works of Josephus: Complete and Unabridged*](#). Hendrickson Pub. 414.

Jesus was certainly aware of this. Because he included many women among his disciples, especially women whose relationships with men or their husbands were likely tenuous ([see Luke 8:1-3](#)), we should not be surprised that he is aware of the oppressive dynamics at work.

Factor 4: Jesus Reads the Laws of the Torah in Light of the Eden Ideal

Notice how Jesus situates the laws of Moses in their narrative context, where the Israelites to whom Moses speaks are “hard of heart.” This is an important theme in Deuteronomy.

Deuteronomy 5:29 NASB

Oh that they had such **a heart** in them, that they would fear me and keep all my commandments always, that it may be well with them and with their sons forever!

Deuteronomy 9:5–6 NASB

It is **not for your righteousness or for the uprightness of your heart** that you are going to possess their land, but it is because of the wickedness of these nations that the LORD your God is driving them out before you, in order to confirm the oath which the LORD swore to your fathers, to Abraham, Isaac and Jacob. Know, then, it is not because of your righteousness that the LORD your God is giving you this good land to possess, for **you are a people stiff of neck**.

Deuteronomy 10:16 NASB

So **circumcise your heart**, and **stiffen your neck** no longer.

Notice also that Jesus appeals to the Eden ideal by quoting from Genesis 1 and 2 as a combined statement on God's ideal for human marriage.

Jesus ignores their question and moves right to the heart of the issue from his perspective. Instead of debates about legitimate grounds for (men) initiating divorce, he responds by pondering the symbolic meaning of marriage within the Scriptures, and what it tells us about God's will.

As an illustration, if someone asked you, "So, if someone uses a hammer to smash a window or to dent a car door, how much should the penalty be?" And you responded, "Stop: What is a hammer for in the first place? Do you even know what it's actually designed to do? If you did, you wouldn't be asking me this question!"

For Jesus, marriage between a man and woman is an image of God (Matt. 19:4-6), meant as a display of the life-giving oneness of the creator.

Their response in 19:7, "Why did Moses command to give a divorce certificate?" triggers Jesus. He disputes their interpretation of Deuteronomy 24 and makes a fascinating distinction: Deuteronomy 24:1-4 is not a command, but a concession to Israel's sinful disobedience.

In Jesus' mind, the laws of the Torah are one window into the will of God, but not the only one in the Scriptures. Jesus reads the Eden narrative as a statement of God's ideal will for humanity. Marriage is an image of God. The fact that God allows and offers guidance about divorce does not mean that divorce is "commanded" in any situation.

In Jesus' mind, the entire "any cause divorce" debate is built on a rotten foundation: that men could treat women as discardable when the woman no longer suits his fancy.

Factor 5: Jesus' Teaching on Divorce Needs To Be Understood in This Biblical and Historical Context

Only after clarifying his view on the meaning of marriage, and only after elevating the dignity of Jewish women by protecting their marriage status, does Jesus state his own view.

Jesus sides with the "house of Shammai," that sexual immorality is the grounds for divorce referred to in Deuteronomy 24:1. The "adultery exception" does not represent a comprehensive statement about divorce, but is a specific response to a specific question about the interpretation of Deuteronomy 24:1-2.

Jesus remains silent about other legitimate grounds for divorce, because he was never asked about that topic.

We do know that Paul the apostle was aware of both Jesus' teaching on the grounds for divorce and also [Exodus 21:10-11](#), because he too thinks that neglect and abandonment are legitimate grounds for the dissolving of a marriage ([1 Cor. 7:15](#)).

Exodus 21:7-11 NIV

⁷ If a man sells his daughter as a servant, she is not to go free as male servants do.

⁸ If she does not please the master who has selected her for himself, he must let her be redeemed. He has no right to sell her to foreigners, because he has broken faith with her.

⁹ If he selects her for his son, he must grant her the rights of a daughter.

¹⁰ **If he marries another woman, he must not deprive the first one of her food, clothing and marital rights.**

¹¹ **If he does not provide her with these three things, she is to go free, without any payment of money.**

1 Corinthians 7:13-15 NIV

And if a woman has a husband who is not a believer and he is willing to live with her, she must not divorce him.

For the unbelieving husband has been sanctified through his wife, and the unbelieving wife has been sanctified through her believing husband. Otherwise your children would be unclean, but as it is, they are holy.

But if the unbeliever leaves, let it be so. The brother or the sister is not bound in such circumstances; God has called us to live in peace.

Factor 6: Jesus' Focus in his Teachings on Marriage and Divorce Is About the "Heart"

For Jesus, divorce in his day, initiated by Jewish men, was a sign of the "hardness of heart." Here we return to the main theme at work in case studies 1 and 2.

The heart of a man who can casually divorce a woman, placing her in an economically and socially vulnerable position, for "any cause," is the ultimate sign of a human turned in on themselves. It is another example, along with murder/anger and adultery/lust, of treating another person as less than an image of God.

Jesus' response doesn't focus on the loopholes about grounds for divorce. He believes that if one understands the true purpose of something, it would make the debate unnecessary and meaningless. "If you guys really understand what marriage is about, based on God's ideal from [Genesis 1-2](#), we wouldn't even need to have this stupid debate."

Factor 7: Jesus Portrays Men as the Primary Perpetrators and Women as Victims

Notice that when Jesus describes the impact of an illegitimate divorce on both the man and woman, he uses different forms of the verb "to commit adultery" (Greek *moikheuo*/μοιχεύω).

Matthew 5:32	Greek Translation Notes
And I say to you that	
everyone who sends away his wife, —except on the ground of sexual immorality— he makes her a victim of adultery,	Passive: μοιχευθῆναι Literally, “He makes her to be adulterated against.”
and whoever marries a sent-away woman, he commits adultery.	Active/Middle: μοιχᾶται
<i>Jesus’ Views on Illegitimate Divorces.</i> Created by Tim Mackie for BibleProject Classroom: The Messianic Torah (2024).	

The phrase “to make her a victim of adultery” (ποιεῖ αὐτὴν μοιχευθῆναι) is a difficult one, normally understood as “causes her to become an adulteress” and explained in terms of the practical need and near inevitability of the wife’s remarrying. But this has never seemed very satisfactory. It seems better to note that each of the other forms of this tradition includes, at this point, an assertion that the man (as he subsequently remarries) is guilty of adultery against his first wife.

Matthew 19:9
Instructor's Translation

And I say to you,
 whoever divorces his wife, except for sexual immorality,
 and marries another woman commits adultery.

Such a thought was novel in the 1st century world, where adultery was an offence against the rights of a married man, and neither the Hebrew nor the Greek language was receptive to its expression.

“The verb here, μοιχεύειν, is normally used in the active of a man committing adultery and in the passive of a woman committing adultery. But the active could refer to a woman’s role in adultery, especially in a statement that did not intend to be gender-specific. This opens up the possibility that the passive form, obviously available to express the idea that a man might be the victim of adultery through the action of his wife, might also be used to express this new thought that the woman as well might be the victim of adultery through the action of her husband. ... What is being asserted, then, is that, in divorcing, the man is not creating a clean slate with freedom to remarry; on the contrary, his establishment of a new relationship will be an act of adultery against his spurned wife.”

Nolland, John (2005). [The Gospel of Matthew: A Commentary on the Greek Text \(New International Greek Testament Commentary\)](#). Eerdmans. 243–244.

“In Jewish thought this second ‘one-flesh’ union was understood to violate the original one so radically that the subsequent continuation of the original marriage was unthinkable; it was officially dissolved (m.Yebam. 2:8; cf. Soṭah 5:1; Ketub. 3:5). ... The termination of a marriage already destroyed by the act of adultery was thus not so much ‘divorce’ (a man’s voluntary repudiation of his wife) as the necessary recognition that the

original marriage no longer existed, that a new 'one-flesh' union was already a fait accompli. ... Against such a background it can be argued that when in Mark and Luke Jesus forbids divorce tout simple this is understood to mean the voluntary breaking of a marriage which is hitherto intact, it being assumed that in the case of porneia by the wife the marriage was already destroyed and could not be allowed to continue. On that view, Matthew is merely making explicit what was assumed by Mark and Luke to be already obvious to their readers. This interpretation perhaps gains support from the way the prohibition of divorce is here expressed, as the initiation of adultery. With regard to the woman, it makes her the victim of adultery, either in that the husband's repudiation of a marriage which is intact is itself equated with an act of adultery (since adultery destroys a marriage), or in that when she subsequently remarries (as is provided for in the divorce certificate and is assumed as the sequel to her divorce) she will be placed by her husband's act in an adulterous relationship, since the original marriage remains valid in the sight of God. So both the divorced wife (the victim of the first husband's unjust act) and her subsequent husband are involved in an act of adultery. ... Moreover, to terminate a marriage where adultery has not in fact occurred is to treat the repudiated wife as if she had herself committed adultery (after which annulment of the marriage would have been automatic); to thus brand her unjustly as an adulteress may also be part of what is meant by to 'make her the victim of adultery.'"

France, R. T. (2007). [*The Gospel of Matthew \(The New International Commentary on the New Testament\)*](#). Eerdmans. 210-211.

Reflection Question

What is the broader historical context of Jesus' teaching on divorce and remarriage? How does Paul's writing in 1 Corinthians 7 help us understand how to apply Jesus' teaching in Matthew 5:31-32?